

SUPERIOR COURT OF CALIFORNIA
COUNTY OF MERCED

Civil Law & Motion/ Petition Name Change
Hon. Jennifer O Trimble
Courtroom 12

1159 G Street, Los Banos

Tuesday, June 02, 2026
1:30 p.m.

The following tentative rulings shall become the ruling of the court unless a party gives notice of intention to appear as follows:

1. You must call (209) 725-4240 to notify the court of your intent to appear.
2. You must give notice to all other parties before 4:00 p.m. of your intent to appear.

Per California Rules of Court, rule 3.1308(a)(1), failure to do both items 1 and 2 will result in no oral argument. *Note:* Notifying CourtCall (the court's telephonic appearance provider) of your intent to appear does not satisfy the requirement of notifying the court.

Case No.	Title / Description
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25CV-04489	Angel Olivares Escobar, et al.vs Roger Brewer, Junior
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Order Show Cause Re: Dismissal

Appearance required.

24CV-01187	Evelyn Lemus vs. Los Banos Unified School District
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Order Show Cause Re: Dismissal

Appearance required.

25CV-00397	Randall Orozco vs. Teixeira and Sons, LLC, et al.
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Motion to Compel Further Responses to Request for Admission, Set Two

Plaintiff's motion to compel further responses to Requests for Admission, Set Two, is DENIED.

Defendant's responses at issue are substantially code-compliant. Code of Civil Procedure section 2033.220 requires that each answer in response to a request for admission be as complete and straightforward as the information reasonably available to the responding party permits. Section 2033.220 further requires that a responding party (1) admit so much of a request as is true, either as expressed in the request itself, or as reasonably and clearly qualified by the responding party, (2) deny so much of the matter involved in the request as untrue, or (3) specify so much of which the responding party lacks sufficient information or knowledge. (See Code Civ. Proc. § 2033.220, subd. (b)(1)-(3).) Defendant's responses are substantially code-compliant as they are reasonably qualified as they state they are based on the information available after a reasonable inquiry.

Although Plaintiff does not prevail on their motion, as the responses were not simple admissions or denials Plaintiff was justified in bringing the instant motion and Defendant was justified in opposing the motion.

Accordingly, all request for monetary sanctions is DENIED.

25CV-05994

Christopher Smith vs Central Valley Concrete, Inc., et al.

Motion to Compel Arbitration and Stay of Proceedings

The motion to compel arbitration and stay proceedings is GRANTED.

The court finds there is an agreement to arbitrate and that the terms of the arbitration agreement are not unconscionable.

The court will sign the order lodged with the court on January 27, 2026.

Plaintiff's request to file a late opposition is DENIED. The court does not find mistake, inadvertence, or excusable neglect under these circumstances excusing the failure to timely file an opposition.

An arbitration status conference is set for December 4, 2026, at 1:30 p.m. in Courtroom 12.

26CV-02057

Petition of: Alan Orozco-Ramirez, et al.

Order Show Cause Re: Name Change

Appearance required.

26CV-02085